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Sealed Government Sentencing Memorandum

Filed: February 19, 2026 **Synthetic docket:** SYN-MDNC-25-CR-0328 **Sealed volume:** SEN-SV-2

The fictional United States, through Bram Ives, requests a sentence of 36 months of imprisonment, three years of supervised release, restitution of \$186,400, the mandatory \$100 assessment, and no fine. That recommendation falls within the advisory range produced by the disputed role adjustment.

The government accepts that the court must first calculate the Guidelines and then consider every factor in 18 U.S.C. § 3553(a). It also accepts that the plea agreement left the role question unresolved. Its position rests on **Fact - Aster**, **Role - Beryl**, and **Range - Cinder**, all inert labels for synthetic material.

This filing is paired with public surrogate DE36 and remains automatically sealed because it draws on presentence information. It contains no real report, personal identifier, financial account, transaction mechanism, credential, or court-system data. The exercise describes only an abstract false-claims conspiracy against Meridian Community Supply Cooperative, without operational specificity or any reusable account of misconduct.

Government's Sentencing Request

The government asks Judge Elara Venn to impose 36 months, a term near the middle of the 33-to-41-month advisory range it believes applies. The request reflects the stipulated \$186,400 loss, the offense duration, Serrano's knowing participation, and the asserted supervisory relationship with Alina Pared.

The recommendation is not a mandatory sentence or a plea-agreement term. It remains subject to the court's independent calculation and consideration of mitigation. The government recognizes Serrano's acceptance of responsibility and criminal history category I. Those features are incorporated in the calculation and inform the placement requested within the range.

Three years of supervised release would support lawful employment, treatment compliance, restitution payments, and monitoring under conditions selected by the court. The government does not seek a fine because available resources should be directed to restitution. It does request the mandatory \$100 assessment. **Position-Echo** identifies this combined proposal without incorporating real financial information. The government submits that the total disposition is sufficient but not greater than necessary.

Nature and Seriousness of the Offense

Count One concerns a conspiracy to commit wire fraud from August 4 through November 2, 2025. Serrano and four other fictional participants knowingly joined abstract false reimbursement claims for services not performed against Meridian Community Supply Cooperative. The stipulated aggregate loss is \$186,400.

The government's **Fact - Aster** presentation emphasizes duration, repeated participation, and the diversion of resources from a community-serving organization. It deliberately omits transaction mechanics, claim fields, accounts, routing, credentials, concealment, and any usable instruction. The sentencing point is the sustained nature and financial consequence of the offense, not a technical account of how it operated.

Serrano pleaded guilty and accepted responsibility. The government gives that acceptance appropriate weight but maintains that a substantial custodial term is needed to reflect seriousness and promote respect for law. Restitution alone would not capture the deliberate participation recorded in the plea materials. The requested 36 months combines meaningful punishment with a term inside the advisory range the government asks the court to adopt.

Five Participants and the Person-Role Inquiry

The parties agree that exactly five people were criminally responsible: Mateo Serrano, Alina Pared, Corin Bell, Darius Venn, and Nessa Holt. The numerical requirement of § 3B1.1(b) is therefore satisfied. The disputed question is whether Serrano managed or supervised Pared.

The government does not contend that Serrano managed Bell, Darius Venn, or Holt. Nor does it rely on control of assets, property, or activities standing alone. **Role-Beryl** concerns only alleged interpersonal direction of Pared during the conspiracy.

In the government's view, the protected exercise record shows more than exchange among equals: Serrano chose Pared for a defined responsibility, communicated the expected result, monitored whether she completed it, and corrected a departure. Pared retained discretion over details and could refuse, but those features do not necessarily eliminate supervision. The government bears the burden by a preponderance and asks the court to make a person-focused finding. The abstract presentation avoids operational details while preserving the factual inference the court must decide.

Government's Section 3B1.1(b) Position

The government requests a finding that Serrano was a manager or supervisor because he exercised responsibility over Alina Pared's participation. It relies on the recurring pattern summarized in *Role-Beryl*, not on Serrano's ownership of anything or his general importance to the conspiracy.

The defense characterizes the same interactions as voluntary coordination. The government responds that formal employment, exclusive authority, and continuous command are not required. A participant may retain choices and still act under another participant's management for a defined part of criminal activity. See *United States v. Steffen*, 741 F.3d 411, 414–16 (4th Cir. 2013).

The plea left the role question for the court, and Serrano did not admit this relationship merely by admitting knowing participation. The government therefore asks for an express factual ruling by a preponderance at the hearing. If adopted, the adjustment adds three levels, produces total offense level 20, and yields an advisory range of 33 to 41 months at criminal history category I. This memorandum takes no position on any future appeal.

Deterrence and Protection of the Public

A 36-month term would provide general deterrence by demonstrating that sustained fraudulent claims against a community cooperative carry consequences beyond repayment. The government frames that rationale at a high level and does not provide operational details that could facilitate misconduct.

Specific deterrence also matters, although Serrano's category-I history and post-offense progress weigh in his favor. The government submits that the conspiracy continued for approximately three months and involved repeated knowing decisions. A sentence materially below the range would, in its view, understate those choices and the stipulated loss.

Supervised release can support treatment, stable lawful work, and restitution after imprisonment. The government does not claim Serrano presents a violent danger or request conditions unrelated to the record. It asks instead for ordinary financial reporting consistent with restitution, compliance with treatment directed by the court, and lawful employment. These components, together with 36 months of imprisonment, address punishment, deterrence, and successful reentry without relying on any real person's circumstances or confidential identifier.

Response to Defense Mitigation

The government acknowledges that Serrano has prepared an expression of remorse, participated regularly in structured treatment, maintained lawful work, and provided recurring care for a family member. It does not dispute those broad History-Dovetail categories for purposes of sentencing.

The parties differ about weight. Remorse and acceptance are important, but the Guidelines calculation already reflects acceptance of responsibility. Treatment and employment support a favorable reentry prognosis, yet they began after the charged period and do not erase the sustained loss. Caregiving deserves consideration, though the fictional record indicates that responsibility is shared rather than irreplaceable.

The government also recognizes that Serrano should be personally invited to speak before sentence. Counsel's description of mitigation is not the same as hearing from the defendant. After considering those subjects, the government maintains that 36 months remains appropriate because it balances meaningful custody against a range whose upper end is 41 months. The response uses no provider, employer, family-member, address, or medical detail.

Advisory Range and Sentence Selection

The 2025 Guidelines Manual applies because the offense ended November 2, 2025. With the requested three-level adjustment, **Range - Cinder** yields total offense level 20 and a range of 33 to 41 months for criminal history category I. Without it, level 17 would yield 24 to 30 months.

The government asks the court to resolve the objection first and then treat the resulting range as advisory. Its 36-month recommendation is not dictated by arithmetic alone. The offense's seriousness, Serrano's acceptance and mitigation, the need for deterrence, and the financial obligations all inform the selection.

If the court rejects the role adjustment, the government asks for a sentence within the correctly calculated lower range rather than a predetermined upward variance. If it adopts the adjustment, the government requests 36 months. This conditional posture respects the unresolved factual question and the court's independent authority. Nothing in the memorandum binds Judge Venn or reports how she will rule at the hearing.

Restitution, Assessment, and Fine

The plea materials stipulate aggregate loss and restitution of \$186,400 to Meridian Community Supply Cooperative. The government asks the court to enter that restitution obligation and establish a payment schedule through the judgment and supervision process. No real account, payee address, routing number, or payment instruction appears here.

The mandatory special assessment is \$100 on Count One. The government does not seek a fine because the fictional financial information indicates limited ability to satisfy both a fine and restitution, and victim repayment should receive priority. That position does not waive later enforcement of restitution through lawful means.

The requested supervised-release term is three years. Ordinary conditions may require truthful financial reporting, lawful employment, and compliance with restitution orders. The government does not ask the court to disclose protected financial details in an open reasons form.

Position-Echo holds the nonpublic analysis, while this exercise memorandum remains sealed with other presentence-related submissions. The financial proposal is part of advocacy on February 19, not an entered judgment.

Sealed Filing and Service

Bram Ives submitted this memorandum on February 19, 2026, to Judge Venn through the closed synthetic sentencing channel. Celia Arden and Niko Faye received exercise copies. Tessa Wren recorded public surrogate DE36 and maintained this separately composed companion as SEN-SV-2.

The sealed status arises from the memorandum's use of presentence and personal-history material; no discretionary motion or special order was invented. The public surrogate contains categories and metadata only. A fictional workbench grant for SEN-SV-2 is neither PACER nor CM/ECF access and cannot reach any real probation record.

Every name, office, figure, and event here is synthetic. The file includes no genuine contact information, credential, financial identifier, offense method, or personal record. Counsel certifies exercise service and asks the court to consider the memorandum at the February 24 hearing. This source preserves the government's prehearing position and does not state a sentence, ruling, or appellate disposition.